



File No.: EXP202302319

## RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against XFERA MÓVILES, S.A. (hereinafter, the respondent) without their request receiving the legally established response, as stated by the complainant.

Initially, this Agency considered the right to have been addressed after receiving the response from the respondent.

Namely:

“...once the reasons presented by the respondent, which are in the file, have been analyzed, in view of the actions taken, it is considered that the complainant's request has been addressed in accordance with the personal data protection regulations, and it is not necessary to urge the adoption of additional measures as the requested right has been attended to, therefore the filing of the complaint is appropriate...”

The complainant, in total disagreement with this resolution, submitted a motion for reconsideration which, once analyzed, is found to be favorable and gives rise to the current complaint.

The motion concluded as follows:

“...Consequently, having exercised the right of access, the responsible entity must respond, and, in the event of granting such access, choose the manner in which it will provide the information, ensuring that the interested party obtains a copy of their data and the information associated with it. The most common means to facilitate access are screen viewing, sending a written document, a copy or photocopy sent by certified or non-certified mail, obtaining a fax, sending an email or another electronic communication system, and, ultimately, making available to the interested party any other suitable system for access.

In this case, the respondent has not demonstrated the proper response to the exercise of the requested right of access, in accordance with the provisions of Article 12.4 of the LOPDGDD, since they claim to be in the process of recovering and unlocking the call from July 2022 requested.

Therefore, in this case, the motion for reconsideration is granted...”

SECOND: On October 23, 2013, the respondent was notified of the entry and acceptance of the motion for reconsideration submitted by the complainant, as well as the complaint previously sent, so that within ten working days they could present any arguments they deemed appropriate.

In the arguments sent to this Agency, the required response to be given to the complainant is not substantiated, and they argue:

“...As a measure to prevent the exercise of access by the interested party from affecting the rights of the employees of our agencies, we provide transcripts of the same, which avoids the communication of the data of these third parties to the interested party...”

THIRD: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they can formulate any arguments they consider appropriate. The complainant has not submitted any arguments.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding their obligations, as well as to address complaints filed by an interested party and investigate, as appropriate, the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including the power to "order the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

## III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

## IV

### Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

#### Conclusion

The complainant requested the right of access to certain recordings, and the respondent does not prove to have delivered them, despite claiming so in their allegations, therefore the right is not considered fulfilled and this complaint is upheld.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that the provisions of Article 15 of the GDPR, Article 32 of the GDPR, and Article 6.1 of the GDPR have been infringed, and to urge XFERA MÓVILES, S.A. with NIF A82528548, to send the complainant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with reasons indicating the causes for which the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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